

Court No. - 40

Case :- WRIT - C No. - 20731 of 2023

Petitioner :- Kishan Lal (Now Deceased) Be Deleted From The Arrar Of Parties Nirdosh Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Shyam Singh Somvanshi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Gajendra Kumar,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State and Shri N.K. Tiwari, learned counsel for Purvanchal Vidyut Vitran Nigam Ltd..

2. Present writ petition has been preferred assailing the validity of Electricity Bill dated 09.03.2023 issued by the respondent no.2. Further it is prayed to command the respondents to consider the application/representation of petitioner and pass appropriate order. .

3. At the very outset, learned counsel for the Electricity Department has raised preliminary objection regarding the maintainability of the writ petition on the ground that qua the dispute of electricity bill, exhaustive procedure is provided under Clause 6.5 of the Electricity Supply Code, 2005 (in short "the Code"). In case the petitioner approaches to the authority concerned under Clause 6.5 of the Code for rectification of the bill, definitely the authority will proceed strictly in accordance with law.

4. Confronted with this, learned counsel for the petitioner states that leave may be accorded to approach the competent authority as per Clause 6.5 of the Code.

5. In the facts and circumstances of the case, we find substance in the objection raised by learned counsel for the Electricity Department and as such we are not inclined to interfere in the matter. However, it is always open to the petitioner to avail the remedy as available in law.

6. The writ petition stands ***disposed of*** accordingly.

Order Date :- 23.6.2023/A. Pandey